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Dept. F43

Hearing Date: 08-28-26

Case # 26CHCV00191, Reyes v. BMW
of North America, LLC, et al.

Trial Date: None set.

MOTION FOR JUDGMENT
ON THE PLEADINGS

MOVING PARTIES: Defendants BMW of North America, LLC and
Century West, LLC

RESPONDING PARTY: Plaintiff Martha Reyes

RELIEF REQUESTED

Order granting defendants judgment on the complaint's
First and Second Causes of Action.

RULING: Motion is granted with leave to amend.

SUMMARY OF ACTION

On January 15, 2026, plaintiff Martha Reyes
(Plaintiff) filed this lemon law action against defendants BMW of North

America, LLC (BMW) and Century West, LLC (Century West), (collectively Defendants), asserting breach of express warranty in violation of the Song-Beverly Consumer Warranty Act against defendant BMW and negligent repair against defendant Century West.

Defendants filed a joint answer on March 25, 2026.

Plaintiff alleges she purchased a certified pre-owned 2021 BMW X1 Plaintiff for \$41,448.60. (Compl. ¶ 16.) On October 1, 2023, BMW gave Plaintiff a written warranty contract which included “a Basic Warranty that included bumper-to-bumper coverage for defects in materials and workmanship for the earlier of 48 Months (4 Years) or 50000 miles, a Drivetrain/Powertrain Warranty that covered defects in materials and workmanship for the earlier of 48 Months (4 Years) or 50000, and an California Emissions Warranty that covered defects in materials and workmanship in emissions parts for the earlier of 7 years or 70,000 miles.” (Id. ¶ 8.) BMW also gave Plaintiff an additional certified, pre-owned vehicle (CPO) warranty, which included additional coverage for the earlier of 12 months or Unlimited Miles.

According to Plaintiff, the subject vehicle began exhibiting several defects and nonconformities during the express warranty period that substantially impaired the vehicle’s use, value, and safety. (Id. ¶ 17.) Plaintiff delivered the vehicle to BMW’s authorized repair facility, but BMW was unable to conform the vehicle to the express warranty after a reasonable number of attempts. (Id. ¶¶ 18-19.) BMW has failed to provide restitution for the vehicle. (Id. ¶ 20.) As for defendant Century West, Plaintiff alleges defendant breached its duty to properly store, prepare, and repair the subject vehicle according to industry standards which resulted in unspecified damages.

On July 31, 2026, Defendants filed the instant motion for judgment on the pleadings. Plaintiff filed an opposition on August 17, 2026, and Defendants replied on August 21, 2026.

MEET AND CONFER

Before filing a motion for judgment on the pleadings, “the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion

for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a).) The parties must meet and confer “at least 5 days before the date a motion for judgment on the pleadings is filed.” (Code Civ. Proc., § 439, subd. (a)(2).)

The motion for judgment on the pleadings must include a declaration stating either:

“(A) The means by which the moving party met and conferred with the party who filed the pleading subject to the motion for judgment on the pleadings, and that the parties did not reach an agreement resolving the claims raised by the motion for judgment on the pleadings. [or] (B) That the party who filed the pleading subject to the motion for judgment on the pleadings failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 439, subd. (a)(3).)

The “meet and confer” requirement is met because counsel exchanged emails and Plaintiff’s counsel did not respond to defense counsel’s request for a telephone conversation. (Declaration of Eric Achatz ¶ 2 [sending first email on April 10, 2026].)

ANALYSIS

A. Motion for Judgment on the Pleadings

Any party to an action is entitled to judgment on the pleadings if the challenged pleading does not state a cause of action (Code Civ. Proc., § 438, subds. (b)(2), c(1)(B)(ii); Howard Jarvis Taxpayers Assn. v. City of Riverside (1999) 73 Cal.App.4th 679, 684.) The grounds for the motion must appear on the face of the challenged pleading or be based on the facts on which the court may or is required to take judicial notice. (Code Civ. Proc. § 438, subd. (d); Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, 758-759.) A defendant may move for judgment on the pleadings only after filing an answer and after the time to demur has expired. (Code Civ. Proc. § 438, subd. (f)(2).) However, the moving party may still move for judgment on the pleadings if the moving party did not

demur to the complaint on the same grounds as is the basis for the motion for judgment on the pleadings. (Code Civ. Proc., § 438, subd. (g)(2).)

The time to file an answer or demur expired on February 24, 2026. Although Defendants filed and served an untimely answer on March 25, 2026, Defendants' motion for judgment on the pleadings is timely.

1.

First Cause of Action: Breach of Express Warranty in violation of the Song-Beverly Act

Defendant BMW of North America contends Plaintiff lacks standing to allege her Song-Beverly claim because Plaintiff does not allege she purchased the subject vehicle as a "consumer good," and that the purchase occurred in California. Furthermore, Defendant contends the Song-Beverly Act is inapplicable because Plaintiff purchased a used vehicle for which a new car warranty was not issued and Plaintiff fails to meet Silvio requirements for liability under Civil Code section 1793.2.

In opposition, Plaintiff contends she received written warranties, including a CPO warranty, from BMW, the subject vehicle was not purchased used, and Defendants misrepresent Plaintiff's alleged facts and the law.

a. Plaintiff

fails to clearly allege whether the subject vehicle is a "consumer good" as a "new" motor vehicle or a "used" motor vehicle for which BMW issued a new warranty at the time of the vehicle purchase.

The Song-Beverly Consumer Warranty Act is a remedial statute that protects consumers who purchase products covered by express warranties by regulating warranty terms and imposing service and repair obligations on parties who issue warranties.

(Rodriguez v. FCA US, LLC (2022) 77 Cal.App.5th 209, 217, aff'd 17 Cal.5th189 (2024) (Rodriguez I) [quoting Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798].)

The Song-Beverly Act defines “consumer goods” as any “new product or part” that is bought, used, or leased for “use primarily for personal, family, or household purposes, except for clothing and consumable.” (Civ. Code, § 1791, subd.

(a).) The Act’s “refund-or-replace provision” requires manufacturers of goods to either replace the goods or reimburse the buyer the purchase price of the goods if “after a reasonable number of attempts the manufacturer is unable to conform the goods to the applicable express warranty.” (Civ. Code, § 1791, subd. (d)(1).)

In *Rodriguez v. FCA US, LLC* (2024), the California Supreme Court clarified a circuit split concerning the Act’s definition of “new motor vehicle” narrowing the scope of which vehicles qualified for the Act’s “repair-or-replace” remedy. “[A] motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2)’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (*Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 196 (*Rodriguez II*).)

The Song-Beverly Act also provides protection for used goods but generally limits liability related to those protections to retail sellers or distributors of the used product, distinguishing between distributors/retailers and manufacturers.

(See Civ. Code, § 1795.5.) “Retail seller,’ ‘seller,’ or ‘retailer’ means any individual, partnership, corporation, association, or other legal relationship that engages in the business of selling or leasing consumer goods to retail buyers.” (Civ. Code, § 1791, subd. (l).) The Act provides express and implied warranty protections for used goods only where the entity selling the used product issues an express warranty at the time of sale. (Civ. Code, §§ 1795.5, subd. (a).) “It shall be the obligation of the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new) to maintain sufficient service and repair facilities within this state to carry out the terms of such express warranties.” (Civ. Code, § 1795.5, subd. (a).)

However, when a manufacturer sells directly to the

public, such as issuing a new warranty with the sale of a used good, the manufacturer takes on the role of a retailer. (Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 398; Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 340 [Nothing about the text of section 1795.5 suggests that where a manufacturer acts in the capacity of a retailer, it is exempt from the Song-Beverly Act.]; see also Civ. Code, § 1791, subd. (l).) Rodriguez II does not disturb Kiluk's holding or the retailer-manufacturer theory.

The California Supreme Court reiterated that "for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (Rodriguez II, supra, 17 Cal.5th at p. 202 [citing Rodriguez I, supra, 77 Cal.App.5th at p. 218; Nunez, supra, 61 Cal.App.5th at p. 399; Kiluk, supra, 43 Cal.App.5th at pp. 339-340].)

Here, Plaintiff alleges the 2021 BMW X1 vehicle is a "consumer good" under the Song-Beverly Act, the vehicle constitutes a "new motor vehicle," and Civil Code section 1795.5 also applies to the vehicle. (Compl. ¶¶ 10, 13.) Plaintiff received two warranties from defendant BMW: one that appears to be the remainder of a "new motor vehicle" warranty and an additional CPO warranty which provides one year of additional warranty coverage. (Id. ¶ 8.) From this, the court assumes Plaintiff's 2021 BMW X1 is a used, pre-owned vehicle. However, Plaintiff fails to clarify whether the subject vehicle was purchased in California and whether she received the two warranties at the time she purchased the vehicle. Plaintiff alleges BMW gave her a written warranty for the vehicle on October 1, 2023, but does not clarify whether this was the "new motor vehicle" warranty or the certified pre-owned vehicle warranty. (Id. ¶ 16.)

Thus, if the CPO warranty was issued by BMW at the time Plaintiff purchased the subject used vehicle, the vehicle may qualify as a "consumer good" under the Song-Beverly Act. (See Rodriguez II, supra, 17 Cal.5th at pp. 201-204.) However, Plaintiff may only seek relief under the Act's used goods provisions for defects and nonconformities that are covered by the certified preowned vehicle warranty not the remainder of any original "new motor vehicle" warranty. (See id. at pp. 204-206.)

Regardless, Plaintiff has not clearly alleged when and

where she purchased the vehicle, that she received the CPO warranty at the time she purchased her used vehicle. This prevents the court from determining whether the subject vehicle is a “consumer good” entitled to Song-Beverly protections.

Nor does Plaintiff state whether the certified pre-owned vehicle warranty has gone into effect and the alleged defects and nonconformities arose and were presented for repair during the certified pre-owned vehicle warranty period.

b. The

Complaint satisfies the *Silvio v. Ford Motor Company* requirements.

To prevail on a breach of express warranty claim under the Song-Beverly Act, a buyer must prove four elements: “(1) the vehicle had a defect or nonconformity covered by a written warranty that substantially impaired the vehicle's use, value, or safety to a reasonable person in plaintiff's shoes (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer for repair (the presentation element); (3) the manufacturer or its authorized repair facility did not repair the defect after a reasonable number of repair attempts (the failure to repair element); and (4) the manufacturer did not promptly replace or repurchase the vehicle from the plaintiff (the failure to replace or repurchase element).” (*Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 879, citations omitted.)

In *Silvio v. Ford Motor Company* (2003), the Court of Appeal held that a single failed repair attempt is insufficient to trigger the Song-Beverly Act's “replace or restitution” obligation. (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208-1209.) The Court reasoned that the statutory language “requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle ‘after a reasonable number of attempts,’ a plural noun. (Id. at p. 1208.) Thus, the manufacturer must be given more than one opportunity to repair a defective vehicle. The Court also discussed Civil Code section 1793.22, subdivision (b), which creates a presumption that a reasonable number of attempts have been made under certain circumstances. (Id. at p. 1209.)

“It shall be presumed that a reasonable number of attempts have been made to conform a new motor vehicle to the applicable express warranties if, within 18 months from delivery to the buyer or 18,000 miles on the odometer of the vehicle, whichever occurs first, one or more of

the following occurs: (1) The same nonconformity results in a condition that is likely to cause death or serious bodily injury if the vehicle is driven and the nonconformity has been subject to repair two or more times by the manufacturer or its agents, and the buyer or lessee has at least once directly notified the manufacturer of the need for the repair of the nonconformity.” (Civ. Code, § 1793.22, subd. (b)(1).)

Here, Plaintiff alleges she delivered the subject vehicle to BMW's authorized repair facility for repair of the nonconformities, but BMW was unable to repair the issues after “a reasonable number of repair attempts.” (Compl. ¶¶ 18-19.) Plaintiff alleges the nonconformities substantially impaired the subject vehicle's use, value and/or safety. (Id. ¶ 17.) Assuming Plaintiff purchased and received the subject vehicle no later than October of 2023, the court finds Section 1793.22(b)(1)'s presumption applies to Plaintiff's express warranty claim.

Even still, Plaintiff's First Cause of Action still fails because Plaintiff does not clearly allege when and where she purchased the subject vehicle, whether the CPO warranty was issued by BMW at the time of the vehicle purchase, and whether the nonconformities arose during the original “new motor vehicle” warranty period or CPO warranty period.

Therefore, the court grants defendant BMW of North America's motion as to the First Cause of Action with leave to amend.

2. Second Cause of Action: Negligent Repair

Defendant Century West contends Plaintiff fails to adequately allege Century West breached any tort duty to Plaintiff or that Plaintiff suffered any tort damages from Century West's conduct.

In opposition, Plaintiff contends Century West misrepresents the law, Century West's duty to Plaintiff is statutory, and that she seeks damages for an injury different from that caused by BMW.

To establish negligent repair, the plaintiff must allege: (1) the defendant owed a duty to exercise reasonable care in performing repairs; (2) the defendant breached that duty by negligently performing or failing to properly perform repairs; (3) the negligent repair proximately caused injury or damage; and (4) the plaintiff

suffered damages as a result. (Seo v.

All-Makes Overhead Doors (2002) 97 Cal.App.4th 1193, 1202-1203 (Seo).) To adequately allege negligent repair in a Song-Beverly matter, the plaintiff must allege the cause of action as a separate tort claim distinct from Song-Beverly warranty violations. (But see Davis v. Nissan North America, Inc. (2024) 100 Cal.App.5th 825, 842.)

“A special relationship may arise

out of a contract in which a repair company agrees for a fee to keep a piece of equipment in repair, perform all work necessary for the safety and maintenance of the equipment, and make periodic inspections of the equipment.” (Seo, supra, 97 Cal.App.4th at p. 1204.)

Plaintiff's negligent repair cause of action is supported by conclusory statements.

Plaintiff alleges defendant Century West owed her a duty

“to use ordinary care and skill in storage, preparation and repair of the Subject Vehicle in accordance with industry standards.” (Compl. ¶ 30.) The Complaint does not cite a statutory or common law basis for this duty, but the duty arises from several legal authorities. (See Civ. Code, § 1714; Beetson v. Hollywood Athletic Club (1930) 109 Cal.App. 715, 718-723 [discussing Civ. Code, §§ 1851 and 1852 “bailment”]; Gardner v. Downtown Porsche Audi (1986) 180 Cal.App.3d 713, 715-716 [vehicle stolen from automobile repair garage]; Bus. & Prof. Code, § 9884.7 [Automotive Repair Act concerning industry standards where an automotive repair dealer willfully departs from or disregards accepted trade standards for good and workmanlike repair]; Levy v. State Farm Mutual Auto. Ins. Co. (2007) 150 Cal.App.4th 1, 7-8 [the Court of Appeal noted that the accepted trade standards regulation (16 C.C.R., § 3365) applies specifically to automotive repair dealers and governs the quality of repair work they perform].)

Although Plaintiff also asserts Century West's duty of care arises from Civil Code section 1796.5, the duty of care imposed by Section 1796.5 is not alleged in the Complaint. (See Civ. Code, § 1796.5 [“Any individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner.”].)

Plaintiff further alleges she delivered her vehicle to Century West for repair during the express warranty period for the alleged

defects, but Century West breached its duty of care. (Id. ¶¶ 29, 31.) The breach “was a proximate cause of Plaintiff’s damages.” (Id. ¶ 32.) These conclusory statements are insufficient because Plaintiff fails to provide any specific facts concerning when the vehicle was presented for repairs, what repairs were requested, and what repairs Century West failed to perform.

Furthermore, Plaintiff appears to allege the negligent repair claim in part as if it arises from BMW’s Song-Beverly warranty obligations. (Compl. ¶ 5.) This also presents an issue as to whether the negligent repair claim is barred by the economic loss rule.

Whether the economic loss rule bars a negligent repair claim absent allegations of personal injury or intentional property damage is nuanced and depends critically on two factors: (1) whether the claim arises from a product defect or from the negligent performance of a service, and (2) whether the negligent repair claim is truly independent of the parties’ underlying contract.

The economic loss rule “bars recovery in negligence for pure economic losses when such claims would disrupt the parties’ private ordering, render contracts less reliable as a means of organizing commercial relationships, and stifle the development of contract law.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 915.) The rule “prevent[s] the law of contract and the law of tort from dissolving one into the other.” (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988, citation omitted.) Economic loss includes “damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property[.]” (Jimenez v. Superior Court (2002) 29 Cal.4th 473, 482, quotation and citation omitted.) “The economic loss rule has been applied to bar a plaintiff’s tort recovery of economic damages unless such damages are accompanied by some form of physical harm (i.e., personal injury or property damage).” (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 777.)

But the economic loss rule does not apply to actions for negligent performance of services that result in foreseeable economic loss, regardless of whether the parties are in privity or whether the plaintiff also has a contract remedy. (North

American Chemical Co., supra, 59 Cal.App.4th at p. 783.) When an authorized repair facility negligently performs repair work, the claim arises from the improper performance of services rather than from a defective product itself, placing it outside the economic loss rule's typical application. "[P]rospective economic damages claimed by a plaintiff need not be accompanied by personal injury or property damage in order to be recoverable. (See *ibid.* [discussing *J'Aire Corp. v. Gregory* (1979) 24 Cal.3d 799, 805-806]; see also Civ. Code, § 3300.)

Plaintiff seeks damages for Century West's failure to repair or properly perform its duty to repair the "warranted defect" underlying her Song-Beverly claim against BMW. (Compl. ¶¶ 29, 32.) However, Plaintiff fails to specify the damages she seeks from Century West's supposed breach, forcing the court to infer from the Complaint's allegations as a whole and the Prayer for Relief that Plaintiff seeks similar damages to that sought for the First Cause of Action. To avoid issues with the Economic Loss Rule, Plaintiff must clarify what the repair issues were and what damages she seeks from Century West's breach.

In her opposition, Plaintiff states the damages she seeks are the result of an independent tort and that the damages are awardable under Civil Code section 3333 – economic and non-economic damages. (Opp. at p. 14:5-8.) However, Plaintiff must clarify the requested damages in her second cause of action and in her prayer for relief. Plaintiff also claims she seeks damages for non-warranty service such as oil changes and tire rotations, but these allegations do not appear in the Complaint. (Opp. at p. 12:21-23.) These additional facts provide further factual support for Plaintiff's conclusory statements as to duty, breach, and damages.

Therefore, the court grants defendant Century West BMW's motion as to the Second Cause of Action with leave to amend.

CONCLUSION and ORDER

Defendants' motion for judgment on the pleadings on the Complaint is granted with leave to amend.

Plaintiff may file and serve an amended complaint within

30 days of the issuing of this order.

Defendants to give notice.